

failed to timely file an answer. Defendant solely relied on its attorney (Lewis Brisbois) to timely file an answer in response to the service of the Summons and Complaint. Lewis Brisbois inadvertently made a mistake and failed to file a responsive pleading. Defendant filed this motion within a reasonable period of time. Defendant has, as is statutorily required, also provided other pleading appropriately responsive to the Complaint. Plaintiff's objections are overruled.

CU-25-00311 Enz, Susan W. vs. Enz, Russell,

CU-25-00312 Enz, Susan W. vs. Enz, Karen Elizabeth

Welfare and Institutions Code section 15657.03(a)(1) provides for elders to seek protective orders. (W&I §§15610.07, 15610.30.) A conservator may bring such a petition on behalf of an elder. (W&I§ 15657.03.) A prevailing party in such an action may be awarded court costs and attorney's fees, if any." (*Ibid.*) Fees and costs are mandatory when elder abuse is proven in civil actions, which underscores the public policy that victims of abuse should not have to pay to vindicate their rights. (W&I §§15657 sub (a), 15657.5 sub (a).) Here Petitioner was successful in obtaining restraining orders against Respondents. They knew or should have known that based on the evidence submitted in support of the TROs that a permanent order would almost certainly issue but instead forced the Petitioner to incur substantial fees to prepare for trial, which were preventable. (See Declaration of Ms. Modica.) After nearly four months of high conflict litigation, Respondents stipulated to the maximum restraining order after Petitioner called only himself as a witness.

"It is well established that the determination of what constitutes reasonable attorney fees is committed to the discretion of the trial court, whose decision cannot be reversed in the absence of an abuse of discretion." (*Melnyk v. Robledo* (1976) 64 Cal.App.3d 618, 623; *Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132 ["ascertaining the fee amount is left to the trial court's sound discretion."].) Trial judges are entrusted with this discretionary determination because they are in the best position to assess the value of the professional services rendered in their courts. (*Ketchum, supra*, 24 Cal.4th at 1132; *PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095–1096; *Melnyk, supra*, 64 Cal.App.3d at 623.)